

25VECV03830 25VECV03830

County: los-angeles

Division: Civil Law and Motion

Department: I

Hearing date: 2026-07-27

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Case Number: 25VECV03830 Hearing Date: July 27, 2026 Dept: I

25VECV03830 JACK IRA SCHWARTZ V.

VOLKSWAGEN GROUP OF AMERICA

July 27, 2026, at 8:30 a.m.

Van Nuys Courthouse East, Dept. I

Tentative Ruling – Motion to Compel

Vehicle Inspection

I.

Background

On February 28, 2024, Plaintiff Jack

Ira Schwartz ("Plaintiff") purchased a 2024 Volkswagen Jetta ("Vehicle").

(Compl., ¶ 8.) Defendant Volkswagen Group of America, Inc. ("Defendant") provided a warranty for the Vehicle and agreed to preserve or maintain the utility or performance of Plaintiff's vehicle or to provide compensation if there was a failure in such utility or performance. (Id. at ¶ 9.) The Vehicle was allegedly delivered to Plaintiff with serious defects and developed other serious defects. (Id. at ¶ 10.) Plaintiff presented the defects to Defendant and revoked acceptance of the sales contract. (Id. at ¶¶ 11-14.)

On July 10, 2025, Plaintiff filed a

Complaint alleging violations of the Song-Beverly Act, including Breach of Express Warranty, Breach of Implied Warranty, and violation of section 1793.2.

On May 28, 2026, Defendant filed this

Motion to Compel Vehicle Inspection ("Motion").

On June 11, 2026, the Court denied Defendant's Ex Parte Application to advance the July 27, 2026, hearing for this Motion.

No opposition has been filed.

II. Discussion

Code of Civil

Procedure section 2024.020 governs the cutoff for discovery. Section 2024.020(a) states: "Except as otherwise provided in this chapter, any party shall be entitled as a matter of right to complete discovery proceedings on or before the 30th day, and to have motions concerning discovery heard on or before the 15th day, before the date initially set for the trial of the action." (Code Civ. Proc., § 2024.020, subd. (a).) A continuance or postponement of the trial date does not operate to reopen discovery proceedings. (Code Civ. Proc., § 2024.020, subd. (b).)

Trial in this matter is set for August 10, 2026. 15 days before trial is Sunday, July 26, 2026. Thus, the hearing should have been set for Friday, July 24, 2026. The hearing for this Motion is set for Monday, July 27, 2026. Because this motion will not be heard on or before the 15th day before the date initially set for trial, the Motion is untimely.

Accordingly, Defendant's Motion to Compel Vehicle Inspection is DENIED. Moving party to give notice.